

Ismail v. Paschimanchal Vidyut Nigam Ltd. & Others

Allahabad High Court · Division Bench · 13 March 2019 · Writ - C No. 36061 of 2012 · **Writ dismissed for non-prosecution; any interim order vacated**

HEADNOTE

A consumer challenged a demand notice and a recovery certificate founded on a provisional assessment of Rs 2,52,567 after an alleged checking, contending that the demand had issued before any final assessment, that the alleged final assessment was never served, and that no hearing had been given under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005. After listings, a Division Bench admitted the writ and stayed recovery on deposit of Rs 1 lakh. Years later none appeared for the petitioner even in the revised call; the writ was dismissed for non-prosecution and any interim order vacated. Whether the demand preceded a final assessment, whether a hearing was given, and the quantum of the assessment, were not decided.

FACTUAL SUMMARY

Ismail challenged a demand notice of the Executive Engineer, Paschimanchal Vidyut Nigam Ltd. On his case, a checking on 28 November 2011 produced a provisional assessment dated 29 November 2011 of Rs 2,52,567. He filed objections on 19 December 2011. Meanwhile a demand dated 16 December 2011 required that sum plus Rs 25, and a recovery certificate dated 9 February 2012 followed. The licensee said the objections were decided and a final assessment made on 29 December 2011, but gave no explanation for the earlier demand. The petitioner said the final assessment was never served and that no hearing was given, contrary to the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005.

On 10 September 2012 the writ was admitted and recovery stayed if he deposited Rs 1 lakh within six weeks, without prejudice. On 13 March 2019 none appeared even in the revised call; the petition was dismissed for non-prosecution and any interim order vacated.

HOLDING-UNITS

HOLDING-UNIT · UP-2005:: (unspecified)

Demand and recovery certificate issued on a provisional assessment before a final assessment and hearing; recorded only, then writ dismissed for non-prosecution

HOLDING

On 10 September 2012 the Court recorded that a checking on 28.11.2011 had led to a provisional assessment dated 29.11.2011 of Rs 2,52,567; that the petitioner had filed objections dated 19.12.2011; that a demand notice dated 16.12.2011 for that sum plus Rs 25 had issued, and a recovery certificate dated 9.2.2012 had followed, before any final assessment; and that the licensee said the objections were decided and a final assessment made on 29.12.2011, with no explanation for the 16.12.2011 demand. The petitioner said the final assessment was never served and that no hearing had been given, contrary to the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, and relied on Dr. Munni Lal. The writ was admitted. Recovery under the 9.2.2012 certificate was stayed till the next date if the petitioner deposited Rs 1 lakh within six weeks, without prejudice, with automatic vacation on default. The Court did not construe a numbered Code clause or decide those allegations. ¶ 10.9.2012

QUALIFIER

Interlocutory only (10.9.2012, Satya Poot Mehrotra, J. and Het Singh Yadav, J.).

FLAG Thin procedural record. The Court cited the Act and the Code generally; no numbered clause. Sequence of checking, provisional assessment, objections, alleged final assessment, and a demand issued before that final, matches Clause 6.8 (unauthorised use) or Clause 8.1 (theft); the order does not say which. The petitioner relied on Dr. Munni Lal, 2011 (6) ADJ 650 (DB), a Clause 8.1 theft-assessment case. Unnumbered order-sheet: 26.7.2012 (Ashok Bhushan and Abhinava Upadhyaya, JJ.) listed the writ before a Corporation Bench; 28.8.2012 adjourned for the licensee's instructions; 10.9.2012 is the stay; 13.3.2019 dismissed for non-prosecution.

INTERPLAY · OFFTOPIC::dismissal-for-want-of-prosecution

Writ dismissed for non-prosecution when none appeared for the petitioner; interim vacated

HOLDING

On 13 March 2019 the case was called, none appeared for the petitioner even in the revised list, and the writ petition was dismissed for non-prosecution. Any interim order stood vacated. The Court did not decide whether the 16.12.2011 demand preceded a final assessment, whether a hearing had been given, or the quantum of the Rs 2,52,567 assessment. ¶ 13.3.2019

PRINCIPLE TAGS

writ-dismissed-for-want-of-prosecution-interim-vacated After a 2012 conditional stay of recovery on a demand-before-final-assessment challenge, none appeared for the petitioner even in the revised call on 13.3.2019; the writ was dismissed for non-prosecution and any interim order vacated, leaving the demand and recovery undecided.

¶ 13.3.2019

writ-petition-dismissed-for-want-of-prosecution-on-non-appearance The disposing order of 13.3.2019 dismissed the writ for non-prosecution when none appeared for the petitioner even in the revised list. ¶ 13.3.2019

recovery-must-rest-on-final-assessment-order The 10.9.2012 Bench recorded that a demand notice dated 16.12.2011 and a recovery certificate dated 9.2.2012 had issued on a 29.11.2011 provisional assessment of Rs 2,52,567, that the licensee had no explanation for the demand, and that the petitioner said no final assessment had been served and no hearing given; recovery was stayed on deposit. The point was never decided after the 13.3.2019 dismissal for non-prosecution. Lead authorities: *Dr. Munni Lal v. State of U.P.*. ¶ 10.9.2012

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 16.12.2011, AND THE RECOVERY CERTIFICATE DATED 9.2.2012, WERE ILLEGAL BECAUSE THEY ISSUED BEFORE ANY FINAL ASSESSMENT

The Court recorded that the licensee had no explanation for the 16.12.2011 demand and admitted the writ; it did not hold the demand or recovery invalid. ¶ 10.9.2012, 13.3.2019

NOT DECIDED — WHETHER THE ALLEGED FINAL ASSESSMENT DATED 29.12.2011 WAS SERVED, AND WHETHER A DATE OF HEARING WAS FIXED BEFORE IT WAS MADE

The petitioner alleged want of service and of hearing, contrary to the Act and the Code; the licensee said the 19.12.2011 objections were decided on 29.12.2011. Neither service nor hearing was found as a fact. ¶ 10.9.2012

NOT DECIDED — WHETHER THE DEMAND WAS A THEFT ASSESSMENT (CLAUSE 8.1) OR OTHER UNAUTHORISED USE (CLAUSE 6.8), AND THE CORRECTNESS OR QUANTUM OF THE RS 2,52,567 ASSESSMENT

The Act and the Code were invoked generally without a numbered clause; the assessment was not examined on the merits. ¶ 10.9.2012, 13.3.2019

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Dr. Munni Lal v. State of U.P. and others</i> 2011 (6) ADJ 650 (DB) Allahabad High Court (DB)	Cited by the petitioner on the plea that a demand and recovery issued before a final assessment, and without a hearing, were contrary to the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005; the Court recorded the citation, admitted the writ, and did not apply the decision.		Petitioner	Relied on

